EMPLOYMENT LAW · UNPAID WAGES & SUPER SELF-CALCULATION

Unpaid Wages, Penalty Rates & 12% Super Self-Calculation Manual

Why self-calculating shifts first protects your net payout under Fair Work s 548, plus exact mathematical formulas, FY 2026–27 Award benchmarks, s 557C reverse-onus proof, and FCFCOA Form 5 filing steps.

$26.44/h	150/175%	12% SG	s 557C
1 Jul 2026 National Min Wage	Additive Casual Weekend Math	Payday Super 7d & NES s 116B	Missing Payslip Reverse Onus

Park & Co Lawyers · Use alongside Park_Co_Underpayment_Self_Calculator_2026_EN.xlsx
Legal Practitioner Director: Chang Min Park · Official Inquiry Link: https://parklawyers.com.au/links/

Protecting Your Net Payout: (1) Why Self-Calculating Shifts First Saves Thousands & (2) Regulatory Tip-Offs vs Civil Recovery

Fair Work Small Claims up to **$100,000** (Fair Work Act 2009 s 548) operate in a **no-costs jurisdiction (s 570)**, and private solicitors hold zero power to "punish" employers (report regulatory/payslip breaches free via fairwork.gov.au/tipoff, ATO 13 10 20, or Home Affairs Border Watch). **Callers must self-calculate their shortfall first** using this manual and Park_Co_Underpayment_Self_Calculator_2026_EN.xlsx before submitting our Employment Questionnaire (https://form.jotform.com/221642058161853) for >$50k litigation.

01 Verified FY 2026–27 Minimum Wage & Hospitality Benchmark Rates (From 1 July 2026)

Crucial Rule: Always match each shift to the Pay Guide for the **exact Financial Year worked** via calculate.fairwork.gov.au. Below are the verified **1 July 2026 (FY 2026–27)** rates: National Minimum Wage = **$26.44/hr** (Award-free Casual = **$33.05/hr**), and *Restaurant Industry Award 2020 [MA000119]* Adult **Level 2**:

Shift Category	Multiplier Rule (Always off Permanent Base B = $27.08)	Permanent (FT / PT)	Casual (Additive · Never Compound)
Ordinary Weekday Daytime	Perm 100% × B / Casual 125% × B	**$27.08 / hr**	**$33.85 / hr**
Saturday	Perm 125% × B / Casual 150% × B (125% + 25%)	**$33.85 / hr**	**$40.62 / hr** *(not $42.31)*
Sunday (MA000119 Intro – Level 2)	Perm 150% × B / Casual 150% × B *(MA000009 L2 & MA000119 L3+ = 175% / $47.39)*	**$40.62 / hr**	**$40.62 / hr**
Public Holiday	Perm 225% × B / Casual 250% × B (225% + 25%)	**$60.93 / hr**	**$67.70 / hr**
Overtime (First 2h / After 2h) & Late Loadings	Perm 150% / 200% × B (Mon–Fri 10pm–12am +$2.95, 12am–6am +$4.42)	**$40.62 / $54.16**	Per specific Award clause

02 Exact Mathematical Self-Calculation Formulas

Formulas 1 & 2. Weekly Penalty Shortfall & Flat-Rate / Annualised Salary Reconciliation

Statutory Gross Entitlement = SUM (Actual Hours in Bucket × Applicable FY Award Rate) + Allowances

Pay-Period Gross Wage Shortfall = MAX (0, Statutory Gross Entitlement − Actual Gross Wages Paid)

- **Non-Compounding Casual Rule:** Never multiply the Casual Ordinary Rate ($33.85) by weekend multipliers; always apply the additive percentage (150% Sat, 175% Sun, 250% PH) to the **Permanent Base Rate (B)**.
- **Flat Rates & Salaries:** Any "all-in" hourly rate or salary that falls below the total Modern Award safety net across actual weekends/overtime worked creates an enforceable shortfall.

Formulas 3, 4 & 5. Untaken Annual Leave (+17.5%) · Notice in Lieu (s 117) · Redundancy (s 119)

Unpaid Annual Leave (s 90(2)) = ((Total Ordinary Hours × 4 ÷ 52) − Paid Leave Taken) × Base Rate (B) × 1.175

Notice Shortfall (s 117) = (Statutory Notice Weeks (1–4 wks, +1 wk if age ≥ 45 & ≥ 2 yrs) − Notice Given) × Full Weekly Pay

- **NES Redundancy (s 119):** Applies to permanent staff (≥ 12m service, 4–16 wks) where employer + associated entities have **15 or more employees**.

Formula 6. Unpaid Superannuation (12.0% SG & 1 July 2026 Payday Super · NES s 116B)

Unpaid Super Shortfall = (Statutory OTE (excl. overtime & leave lump sums) × 12.0%) − Super Received in Fund

- **SG Rates by FY:** FY22–23 10.5% · FY23–24 11.0% · FY24–25 11.5% · **From 1 Jul 2025: 12.0%**.
- **Payday Super (from 1 Jul 2026):** Super must reach your fund within **7 business days** of each payday and is directly recoverable in Court under **NES s 116B**.

03 Worked Audit + s 557C Reverse Onus Evidence + FCFCOA Form 5 Guide

Worked 1-Week Audit (MA000119 Level 2 Casual): In August 2026, a restaurant employee works **15h Weekday ($507.75) + 8h Sat ($324.96) + 7h Sun ($284.34 at 150% = $40.62) = $1,117.05 Gross**, paid **$750.00 flat** and $0 super → **$367.05 unpaid wages + $134.05 unpaid 12% super = $501.10/wk shortfall** (**$13,028.60** over 26 wks; **$554.17/wk** under Hotel/Pub MA000009 175% Sunday).

S 557C REVERSE ONUS & 4-TIER EVIDENCE

Winning Even Without Payslips

- **s 557C Presumption:** If your boss failed to keep records (s 535) or issue payslips within 1 working day (s 536), the **burden flips onto the employer** to disprove your reasonable schedule.
- **Tier 1:** Exact Pty Ltd + ACN via abr.business.gov.au + controlling director (s 550).
- **Tier 2:** Bank statements + MyGov ATO STP & Super statements.
- **Tier 3:** Roster screenshots, SMS/WhatsApp logs, **Google Maps Timeline**, transit logs.
- **Tier 4:** Completed Park_Co_Underpayment_Self_Calculator_2026_EN.xlsx.

OFFICIAL RECOVERY PATHWAY (FROM 1 JUL 2026)

3-Step Escalation & Exact Forms

- **Step 1:** Email a formal **7-Day Letter of Demand** attaching your Excel Schedule.
- **Step 2 (Small Claims ≤$100k, 6-yr limit):** File **Originating Application (Fair Work Division) + Form 5** via fcfcoa.gov.au *(never Form 2)*. Fees: <$10k **$310** / $10k–$50k **$500** / $50k–$100k **$585**.
- **Step 3 (Dismissal within 21d):** File **Form F2** or **Form F8** via fwc.gov.au (**$92.70**; Sexual Harassment Form F75 = **$0**).

When to Consult Park & Co Lawyers: Corporate Defence & High-Stakes Employment Matters

Use our formulas to preserve 100% of routine small claims first; we step in when stakes escalate: we provide formal representation and fixed-scope legal advice for: (1) **Employer & Visa-Sponsor Fair Work Defence / HR Retainers**; (2) **482 / 186 Visa-Linked or Executive Dismissals** (strict 21-calendar-day limit); (3) **Major Multi-Year Underpayment & s 550 Director Liability Litigation (>$50,000–$200,000+)**; and (4) **Deed of Release & Restraint Reviews**. Submit your contract, dismissal notice, or completed self-calculated Excel summary via https://parklawyers.com.au/links/ (**Park & Co Lawyers** · Legal Practitioner Director: **Chang Min Park**).

Park & Co Lawyers · Companion Workbook: Park_Co_Underpayment_Self_Calculator_2026_EN.xlsx

Corporate Advisory & Major Litigation (>$50k) Retainers: https://parklawyers.com.au/links/